

ELITE SPORT PHOTOS

Privacy Policy

Version	2.0
Last Updated	April 2026
ABN	64 409 711 418
Website	www.elitesportphotos.com

1. Introduction

Elite Sport Photos (ABN: 64 409 711 418) is an Australian sports photography business that operates an online platform allowing athletes and event participants to locate and purchase photographs of themselves taken at sporting events. We utilise artificial intelligence (AI) facial recognition technology solely as a search mechanism to help individuals find their event photographs quickly and accurately.

We are committed to protecting the privacy of all individuals whose information we handle. This Privacy Policy explains:

- What personal information we collect and why;
- How we use AI facial recognition technology and the specific protections in place;
- How we store, protect, and delete your personal information;
- Your rights in relation to your personal information;
- Our obligations in the event of a data breach; and
- How to contact us if you have privacy concerns.

This Privacy Policy is governed by the Privacy Act 1988 (Cth) (Privacy Act) and the thirteen Australian Privacy Principles (APPs) contained in Schedule 1 of that Act, including the Notifiable Data Breaches (NDB) scheme under Part IIIC of the Privacy Act. Because our service uses biometric information (facial data) for facial recognition, this Policy also specifically addresses our obligations in respect of sensitive information under APP 3.

2. About Our Service and AI Facial Recognition

2.1 How the Service Works

Our service allows sporting event participants to find photographs of themselves by following these steps:

- The athlete or participant visits our secure online platform following an event;
- The individual voluntarily uploads a selfie (a photograph of themselves) to the platform;
- Our AI facial recognition system compares the uploaded selfie against the event photographs stored on our private server;
- Matched photographs are displayed to the individual for review and purchase; and

- Once the search is complete, the uploaded selfie is immediately and permanently deleted from our systems.

2.2 Classification of Biometric Data

Under the Privacy Act 1988 (Cth), facial recognition data derived from a photograph constitutes sensitive information because it relates to biometric information used for the purpose of automated biometric verification or identification. We acknowledge this classification and apply the heightened protections applicable to sensitive information, including requiring your explicit consent before processing your facial data.

3. Personal Information We Collect

3.1 Information You Provide to Us

When you use our service, we may collect the following personal information:

Type of Information	Examples	When Collected
Identity information	Full name, email address	Account registration or purchase
Contact information	Email address, phone number	Account registration or customer support enquiries
Biometric / sensitive information	Selfie photograph used for facial recognition matching	At the point of facial recognition search (deleted immediately after)
Payment information	Payment card details, billing address (processed by our payment provider)	At the point of purchase
Transaction records	Purchase history, downloaded files	On purchase and account activity
Technical / usage data	IP address, browser type, device type, session data	Automatically when you visit our platform

3.2 Information Collected Through Photography at Events

Photographs taken at sporting events at which we operate may depict you or other attendees. Our photographers operate at these events in a professional capacity. Event participants are made aware of the photography service through event signage, event programs, or other communications provided by the event organiser. By participating in an event where our photography service operates, participants acknowledge that photographs may be taken in the course of the event.

4. How We Use Your Personal Information

We use personal information only for the purposes for which it was collected or a directly related secondary purpose. The primary purposes for which we use your personal information are:

- (a) To provide the facial recognition search service: Processing your selfie in real-time to identify and return matching photographs from our event library. As noted, your selfie is never stored and is deleted upon completion of the search.
- (b) To fulfil purchases: Processing and managing your purchase of photographs, including sending purchase confirmations and delivering digital files.
- (c) To manage your account: Creating and maintaining your account, verifying your identity, and providing customer support.
- (d) To improve our service: Using aggregated, de-identified technical data to analyse and improve platform performance and user experience. We will not use identifiable personal information for this purpose.
- (e) To communicate with you: Sending service-related communications such as receipts, updates, and responses to your enquiries. With your explicit consent, we may send you marketing communications, from which you may opt out at any time by using the unsubscribe link in any marketing email or by contacting us at Section 13.
- (f) To comply with legal obligations: Complying with our obligations under applicable Australian laws, including tax, financial reporting, and law enforcement requirements.

We will not use your personal information for any other purpose without first obtaining your consent, unless otherwise permitted or required by law.

5. Data Retention and Deletion

5.1 Event Photographs – Retention Period

All photographs taken at sporting events are stored on our secure private servers exclusively for the purpose of enabling athletes and participants to search for and purchase their photographs. Event photographs are retained for a period of ninety (90) days from the date of the relevant sporting event, after which they are securely and permanently deleted from our servers.

During the retention period, these photographs are not publicly accessible and cannot be viewed by any person other than:

- Our authorised staff, for the sole purpose of event management and technical maintenance; and
- A participating athlete who has used the facial recognition search and been matched to the photograph.

If you wish to request earlier deletion of event photographs in which you appear, please contact our Privacy Officer using the details in Section 13.

5.2 Selfie Data

Your uploaded selfie is never stored on our servers. It is processed in real-time to perform the facial recognition search and is immediately and permanently deleted upon completion of the search, whether or not a match is found. We do not retain any biometric template or facial encoding derived from your selfie.

5.3 Retention of Other Personal Information

Other personal information we hold (such as account details and purchase records) is retained for as long as necessary to:

- Maintain your account and deliver services to you;
- Comply with our legal obligations under the Corporations Act 2001 (Cth) and applicable tax legislation (generally seven (7) years for financial records); and
- Resolve disputes and enforce our agreements.

Once personal information is no longer required for these purposes, we will take reasonable steps to de-identify or securely destroy it.

6. Consent for Biometric and Sensitive Information

Because facial recognition data is classified as sensitive information under the Privacy Act 1988 (Cth), we are required to obtain your explicit informed consent before processing it. We obtain your consent at the point of use through:

- A clear on-screen consent prompt before you upload your selfie, explaining exactly how it will be used;
- A plain-language explanation that your selfie will be used only for the search and deleted immediately afterwards;
- An active consent checkbox or confirmation action which you must complete before proceeding; and
- The option to exit the process at any time without uploading your selfie, and to search for your photographs by manual methods (event name, bib number, or date).

You may withdraw your consent at any time. Because your selfie is deleted immediately after each search, withdrawal of consent applies prospectively to future searches.

We will not collect or process your biometric data for any purpose other than the facial recognition search service described in this Policy. We will not use your biometric data to train AI models or share it with third parties for their own purposes.

7. Disclosure of Personal Information

7.1 Who We Share Information With

We will not sell, trade, or rent your personal information to third parties. We may disclose your personal information only in the following limited circumstances:

Third-party service providers: We engage third-party service providers to assist with operating our platform, including payment processors, cloud hosting providers, and AI technology suppliers. These providers are contractually bound to handle your information only in accordance with our instructions and this Privacy Policy, and are prohibited from using it for their own purposes. We require all service providers handling biometric or sensitive information to implement security standards equivalent to our own.

Event organisers: We may share de-identified, aggregated statistical data (such as the number of photographs purchased at an event) with event organisers. We will not share identifiable personal information with event organisers without your consent.

Legal and regulatory requirements: We may disclose personal information where required by law, court order, or a request by a government or regulatory authority with lawful authority to require disclosure.

Business transfers: In the event of a sale, merger, or acquisition of our business, your personal information may be transferred to the acquiring entity. We will take reasonable steps to ensure that the acquiring entity is bound by privacy obligations no less protective than those set out in this Policy, and we will notify you of any such transfer before it occurs where required by law.

7.2 Overseas Disclosure

Some of our service providers (including cloud hosting and AI technology providers) may store or process data on servers located outside Australia, including in the United States and/or the European Economic Area. Before disclosing your personal information to any overseas recipient, we will take reasonable steps to ensure that the overseas recipient does not breach the APPs in relation to that information, as required by APP 8. Where practicable, we seek to contractually bind overseas recipients to privacy obligations consistent with Australian law.

If we are unable to ensure adequate APP-equivalent protection for an overseas disclosure, we will obtain your consent before making that disclosure.

8. Security of Your Personal Information

We take reasonable steps to protect the personal information we hold from misuse, interference, loss, and unauthorised access, modification, or disclosure. Our security measures include:

- Encryption of data in transit using industry-standard TLS/SSL protocols;
- Encryption of data at rest on our secure private servers;
- Strict access controls limiting access to personal information to authorised personnel only on a need-to-know basis;
- Regular security audits and vulnerability assessments of our platform;
- Immediate and automated deletion of selfie data following completion of each search query;
- Hosting of event photographs exclusively on private servers that are not publicly accessible or indexed; and
- Staff training on privacy obligations and data handling procedures.

Despite our best efforts, no data transmission over the internet or data storage system can be guaranteed to be completely secure. If you believe your information may have been compromised, please contact us immediately using the details in Section 13.

9. Data Breach Notification

We are subject to the Notifiable Data Breaches (NDB) scheme under Part IIIC of the Privacy Act 1988 (Cth). If we become aware of a data breach that is likely to result in serious harm to any individual whose personal information is involved, we will:

- Promptly assess the breach to determine whether it is an eligible data breach under the NDB scheme;

- Notify the Office of the Australian Information Commissioner (OAIC) and all affected individuals as soon as practicable where we determine the breach is notifiable; and
- Take immediate steps to contain the breach and prevent further unauthorised access or disclosure.

Given the sensitive nature of the biometric information we process, we treat any suspected breach involving facial recognition data or personal information with the utmost urgency. Our incident response procedures are reviewed regularly to ensure we can respond promptly.

If you suspect that your personal information has been compromised, please contact our Privacy Officer immediately using the details set out in Section 13.

10. Your Privacy Rights

10.1 Right to Access

Under APP 12, you have the right to request access to the personal information we hold about you. We will respond to your request within 30 days and will provide access in the manner you request where it is reasonable to do so. We may charge a reasonable administrative fee for providing access, of which we will notify you in advance.

10.2 Right to Correction

Under APP 13, if you believe that personal information we hold about you is inaccurate, out-of-date, incomplete, irrelevant, or misleading, you may request that we correct it. We will take reasonable steps to correct the information within 30 days and, where appropriate, notify third parties to whom the information was disclosed.

10.3 Right to Complain

If you believe we have not complied with the APPs, you have the right to make a complaint. Please contact us first using the details in Section 13 and we will endeavour to resolve your complaint within 30 days. If you are dissatisfied with our response, you may escalate your complaint to the Office of the Australian Information Commissioner (OAIC):

Website	www.oaic.gov.au
Phone	1300 363 992
Post	GPO Box 5218, Sydney NSW 2001

11. Cookies and Online Tracking

Our website may use cookies and similar tracking technologies to support the functionality, security, and performance of our platform. The types of cookies we may use are:

Essential cookies: Required for the platform to function, including maintaining your session, processing your consent, and enabling secure login. These cannot be disabled without affecting core functionality.

Analytics cookies: Used to understand how visitors interact with our platform (e.g., pages visited, time spent) in order to improve user experience. Where possible, we use aggregated and de-identified analytics data.

Security cookies: Used to detect and prevent fraudulent or malicious activity on our platform.

We do not use third-party advertising cookies or share your browsing data with advertisers or ad networks.

You can configure your browser to refuse cookies or delete existing cookies. Please note that disabling essential cookies may affect the functionality of our platform, including your ability to complete purchases.

12. Children's Privacy

Our service is not directed at children under the age of 15 years. Given the sensitive nature of biometric data, we apply the following protections for younger users:

- Individuals under 15 years of age must not use the facial recognition search feature without the explicit consent of a parent or legal guardian;
- We will not knowingly collect biometric or other sensitive information from a child under 15 without verifiable parental consent; and
- Where we become aware that we have collected personal information from a child under 15 without appropriate consent, we will promptly delete that information.

If you are a parent or guardian and become aware that your child has submitted personal information to us without your consent, please contact us immediately using the details in Section 13.

13. Changes to This Privacy Policy

We may update this Privacy Policy from time to time to reflect changes in our practices, technology, or legal obligations. When we make material changes, we will:

- Post the updated Privacy Policy on our website with a revised “Last Updated” date;
- Send a notification to registered account holders via email; and
- Where changes materially affect how we handle biometric or other sensitive information, obtain your fresh explicit consent before implementing those changes. Continued use of our platform does not constitute consent to material changes affecting sensitive information.

We encourage you to review this Privacy Policy periodically.

14. Contact Us

If you have any questions, concerns, or requests relating to this Privacy Policy or the handling of your personal information, please contact our Privacy Officer:

Role	Privacy Officer, Elite Sport Photos
Email	trent@elitesportphotos.com

Website

www.elitesportphotos.com

We will acknowledge your request promptly and endeavour to resolve your enquiry within 30 days. Where a longer period is required due to the complexity of your request, we will advise you of the expected timeframe.

This document is a privacy policy for information purposes. It does not constitute legal advice. Elite Sport Photos recommends obtaining independent legal advice to ensure ongoing compliance with the Privacy Act 1988 (Cth) and any applicable state or territory legislation.